

Vijendra Singh v. State of U.P. & 3 Others

High Court of Judicature at Allahabad · Division Bench · 30 November 2023 · Writ - C No. 16169 of 2023 · **Recovery on the certificate dated 31.01.2023 stayed; respondent no. 3 to explain non-disconnection under Clauses 4.36 and 4.38 and recovery despite Section 56(2); writ remains pending**

HEADNOTE

Where the consumer says the transformer supplying him burnt in 1995, the boring failed the same year, and he consumed no electricity thereafter, and a recovery certificate dated 31 January 2023 seeks Rs. 10,16,977 and other charges, the writ court does not decide disconnection or limitation. On 12 May 2023 it directs respondent no. 3 to file an affidavit stating why temporary disconnection followed by permanent disconnection was not effected under Clauses 4.36 and 4.38 of the U.P. Electricity Supply Code, 2005, and how dues for that period would be recovered at this distance of time contrary to Section 56(2) (the order says 'Electricity Supply Act, 2003'), and stays recovery on the certificate. The writ is thereafter adjourned, the interim order continued, and on 30 November 2023 listed for 18 December 2023 among the top ten cases. Clauses 4.36 and 4.38 and Section 56(2) are not construed.

FACTUAL SUMMARY

Vijendra Singh filed Writ-C No. 16169 of 2023 in the High Court of Judicature at Allahabad against the State of U.P. and three others. The record showed that the transformer through which he was supplied electricity burnt in 1995, and the boring failed in the same year. His case was that he had not consumed a single unit after 1995. A recovery certificate dated 31 January 2023 sought Rs. 10,16,977 and other charges.

On 12 May 2023 Manoj Kumar Gupta and Prashant Kumar, JJ. directed respondent no. 3 to file an affidavit explaining why temporary disconnection followed by permanent disconnection was not effected under Clauses 4.36 and 4.38 of the U.P. Electricity Supply Code, 2005, and how electricity dues for that period could be recovered at this distance of time contrary to Section 56(2). Recovery on the certificate was stayed. Later Benches adjourned the writ through 30 November 2023, when it was listed for 18 December 2023 among the top ten cases and the interim order, if any, was continued. The writ remains pending in this source.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.36

Why temporary disconnection under Clause 4.36 was not effected after supply ceased in 1995; affidavit called; clause not construed

QUESTION

Why was temporary disconnection under Clause 4.36 not effected after the transformer burnt and the boring failed in 1995, the consumer saying he consumed no electricity thereafter?

HOLDING

Not decided. On 12 May 2023 the Court directed respondent no. 3 to file an affidavit disclosing why temporary disconnection followed by permanent disconnection was not effected despite Clauses 4.36 and 4.38 of the U.P. Electricity Supply Code, 2005, and stayed recovery on the certificate dated 31 January 2023. Clause 4.36 was not quoted or applied. Later orders only adjourned the writ and continued the interim order.

¶ order of 12.5.2023 paras 1-2

QUALIFIER

Interlocutory direction of 12 May 2023 (Manoj Kumar Gupta and Prashant Kumar, JJ.). Writ-C No. 16169 of 2023 remains pending. The latest order in the source is 30 November 2023.

FLAG Source PDF concatenates eight unnumbered-after-the-first order-sheets: 12.5.2023 paras 1-5 (Manoj Kumar Gupta and Prashant Kumar, JJ.; affidavit and stay), 25.5.2023 (same Bench; time for instructions; interim extended), 10.7.2023 (Pritinker Diwaker, C.J. and Ashutosh Srivastava, J.; counter directed; interim continued), 9.8.2023 (same; listed in the week of 25.9.2023; interim continued), 25.9.2023 (Siddhartha Varma and Manoj Bajaj, JJ.; listed 17.10.2023; interim extended), 7.11.2023 (same; listed 17.11.2023 in the top ten; stay not mentioned), 17.11.2023 (same; listed 30.11.2023 in the top ten; interim if any to continue), and 30.11.2023 paras unnumbered (Siddhartha Varma and

Shekhar B. Saraf, JJ., listed 18.12.2023 in the top ten; interim if any to continue). Coram is the latest Bench. Catalog hits on UP-2005::17.10, clause-4.37-4.38, fresh-bill-distinguished-from-supplementary-bill-for-s56(2), and s56(2)-bar-does-not-apply-to-continuing-regular-bills are false positives: Clause 4.37, Clause 17.10, and those distinctions are not in the text.

HOLDING-UNIT · UP-2005::4.38

Why permanent disconnection under Clause 4.38 did not follow temporary disconnection; affidavit called; clause not construed

QUESTION

Why was permanent disconnection under Clause 4.38 not effected after the failure to disconnect temporarily, before a 2023 recovery certificate for dues said to relate to a connection dead since 1995?

HOLDING

Not decided. The 12 May 2023 order treats Clauses 4.36 and 4.38 together as the 'specific provisions' for temporary disconnection followed by permanent disconnection, and requires respondent no. 3 to explain the omission. It does not set out the permanent-disconnection procedure, does not find that Clause 4.38 was breached, and does not quash the certificate. Recovery remains stayed only as an interim order, continued on the later dates that say so. ¶ [order of 12.5.2023 para 2](#)

QUALIFIER

The Court did not cite Clause 4.37. Keyed only to Clause 4.38, which the order names.

FLAG Clause 4.38 is named once, with Clause 4.36, and is not construed. The permanent-disconnection procedure in the Code is not recited.

HOLDING-UNIT · EA2003::56(2)

Whether dues said to have arisen after 1995 can be recovered in 2023 contrary to Section 56(2); stayed, not decided

QUESTION

Can electricity dues for the period after the 1995 failure of the transformer and the boring be recovered by a certificate dated 31 January 2023, said to be contrary to Section 56(2)?

HOLDING

Not decided. The Court directed respondent no. 3 also to clarify how dues of electricity for that period would be recovered at this distance of time, 'contrary to the mandate of Section 56(2) of the Electricity Supply Act, 2003', and stayed recovery in pursuance of the certificate in the meantime. It did not hold that the demand was time-barred, did not identify when the sum first became due, and did not distinguish a fresh bill from a supplementary bill or from continuing arrears. The stay was extended on subsequent listings. Section 56(2) was not construed. ¶ [order of 12.5.2023 paras 2-4](#)

QUALIFIER

The order misnames the statute as the Electricity Supply Act, 2003. Keyed to Section 56(2) of the Electricity Act, 2003. No precedent is cited.

FLAG No judgment is cited. fp.json citation_count is 0. The two-year bar is flagged as a question for the affidavit, not applied.

PRINCIPLE TAGS

permanent-disconnection-procedure-governed-by-clause-4.38 The Court called on respondent no. 3 to explain why temporary disconnection under Clause 4.36, followed by permanent disconnection under Clause 4.38, was not effected after the transformer burnt and the boring failed in 1995. It did not hold that those clauses required disconnection on these facts, and it did not apply the permanent-disconnection procedure. ¶ [order of 12.5.2023 para 2](#)

two-year-limitation-recovery-of-electricity-arrears The question left open is how dues for the period after 1995 could be recovered by a certificate dated 31 January 2023 for Rs. 10,16,977 and other charges, which the Court described as contrary to Section 56(2). Recovery was stayed. The two-year bar was neither applied nor refused.

¶ [order of 12.5.2023 paras 1-4](#)

procedural-listing-no-construction After the 12 May 2023 affidavit direction and stay, the writ was adjourned on 25 May, 10 July, 9 August, 25 September, 7 November, 17 November and 30 November 2023. On 30 November 2023

it was listed for 18 December 2023 among the top ten cases, the interim order if any to continue. Clauses 4.36 and 4.38 and Section 56(2) remain unadjudicated. ¶ [order of 25.5.2023](#); [order of 30.11.2023](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHY TEMPORARY DISCONNECTION UNDER CLAUSE 4.36, FOLLOWED BY PERMANENT DISCONNECTION UNDER CLAUSE 4.38, WAS NOT EFFECTED AFTER THE TRANSFORMER BURNT AND THE BORING FAILED IN 1995

Respondent no. 3 was directed to file an affidavit. Neither clause was construed, and no finding of breach was recorded.

¶ [order of 12.5.2023 para 2](#)

NOT DECIDED — WHETHER RECOVERY OF RS. 10,16,977 AND OTHER CHARGES BY THE CERTIFICATE DATED 31 JANUARY 2023 IS BARRED BY SECTION 56(2)

Raised as a matter the licensee must clarify. Recovery was stayed in the meantime. The Court did not decide when the sum first became due, or whether any sum was continuously shown as arrears. ¶ [order of 12.5.2023 paras 1-4](#)

NOT DECIDED — WHETHER THE PETITIONER CONSUMED NO ELECTRICITY AFTER 1995

Recorded as the petitioner's specific case, from the material on record. No finding on consumption, on the burnt transformer, or on the failed boring. ¶ [order of 12.5.2023 para 1](#)